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General Knowledge

Indian Polity

STUDY NOTES

The Preamble

Basic Facts

- The Preamble is the introductory statement to the Indian Constitution, which outlines the guiding principles and philosophy.
- The Preamble is based on the "**Objective Resolution**" moved by Pandit Jawahar Lal Nehru and adopted by the Constituent Assembly.
- The preamble has the following components :
  - **Source of the Constitution** (The Constitution derives its authority from the people of India.)
  - **Nature of Indian State** (sovereign, socialist, secular, democratic, and republican polity)
  - **Statement of its objectives** (justice, liberty, equality, fraternity)
  - **Date of its adoption** (November 26, 1949)
- The Preamble was amended only once by the **42nd Amendment Act, of 1976**, adding the words **"Socialist," "Secular," and "Integrity."**
- Status of the preamble:
  - **Berubari case (1960)**: The Court stated that 'Preamble is the key to open the mind of the makers' but it can not be considered as part of the Constitution. Therefore it is not enforceable in a court of law.
  - **Kesavananda Bharati Case (1973)**: The Court held that The Preamble of the Constitution will now be considered as part of the Constitution.
  - **Union Government Vs LIC of India (1995)** also, the Supreme Court has once again held that the Preamble is an integral part of the Constitution but is not directly enforceable in a court of justice in India.

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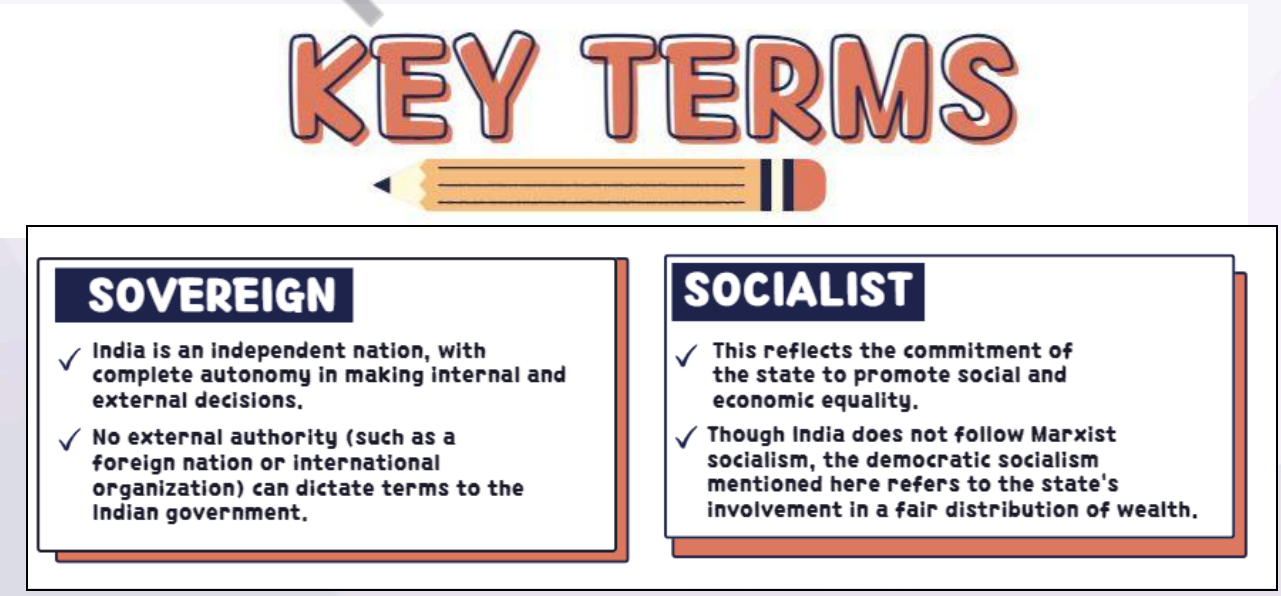

SECULAR

- ✓ The term ensures that the government treats all religions equally, without any discrimination, and that religious freedom is guaranteed for all.es of being.
- ✓ It differs from western secularism as it does not advocate a strict separation but rather a balanced relationship where the state can intervene in religious matters to ensure equality,

DEMOCRATIC

- ✓ India follows a system of government in which the rulers are elected by the people.
- ✓ Every citizen has the right to vote (universal adult franchise), and the government operates according to the will of the people.

REPUBLIC

- ✓ India has an elected head of state (the President), rather than a hereditary monarch.
- ✓ The offices of governance, including the highest, are filled by election and not by birthright.

FRATERNITY

- ✓ A sense of brotherhood among all citizens of India, ensuring dignity for individuals and the unity and integrity of the nation.
- ✓ Fraternity aims to create a sense of solidarity and respect for others, promoting national unity

LIBERTY

- ✓ The freedom of thought, expression, belief, faith, and worship.
- ✓ Liberty ensures that the government does not impose arbitrary restrictions on the freedoms of individuals, provided that they act within the law.

EQUALITY

- ✓ Every individual is equal before the law, and discrimination based on religion, race, caste, sex, or place of birth is prohibited.
- ✓ Equality ensures that all citizens have equal access to opportunities and that no one is treated unfairly under the law.

JUSTICE

- ✓ Social Justice: Fair and equitable treatment for all citizens, regardless of caste, gender, religion, or economic background.
- ✓ Economic Justice: Ensures that the wealth and resources of the nation are distributed fairly, and that poverty is addressed.
- ✓ Political Justice: Equal political rights for all citizens, including the right to vote and participate in governance.

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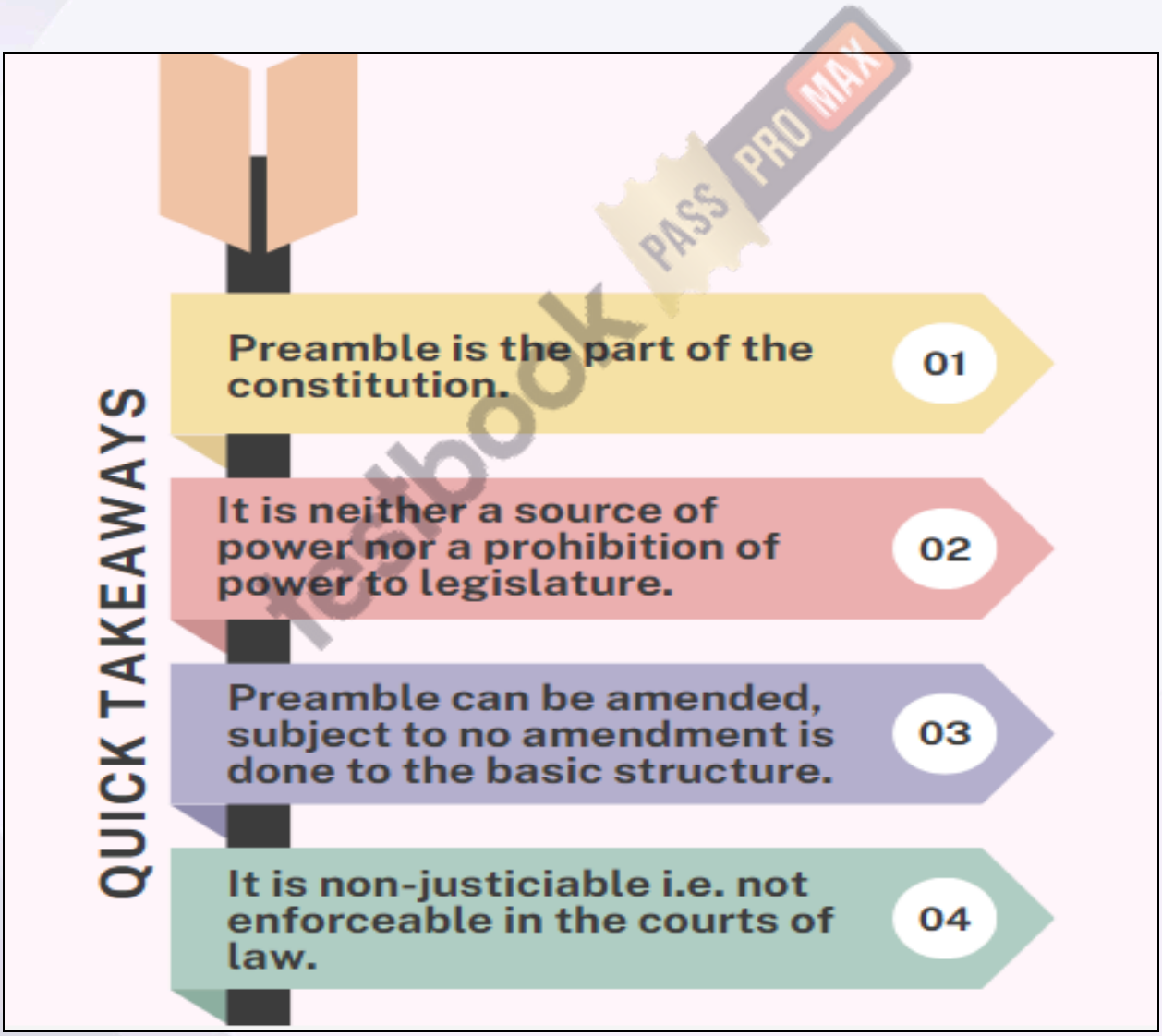
Concept/Term	Borrowed from
We the people of India	USA
Justice (Social, Economic, Political)	Russian Revolution, USA
Liberty	French Revolution, USA
Equality	French Revolution
Fraternity	French Revolution



Importance of Preamble

- Alladi Krishnaswami Iyer – The Preamble to our Constitution expresses what we had thought or dreamt for so long.
- K.M. Munshi – The Preamble is the **horoscope** of our sovereign democratic republic.
- Pandit Thakur Das Bhargava –
    - The Preamble is the most precious part of the Constitution.
    - It is the **soul** of the Constitution.
    - It is a **key** to the Constitution. It is a jewel set in the Constitution.
    - It is a proper **yardstick** with which one can measure the worth of the Constitution.
- Sir Ernest Barker – The Preamble as the **key note** to the Constitution.
- M. Hidayatullah – The Preamble resembles the **Declaration of Independence** of the United States of America, but is more than a declaration. It is the soul of our Constitution, which lays down the pattern of our political society. It contains a solemn resolve, which nothing but a revolution can alter.

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